

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Team # 2	CCRB Case #: 201405146	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 05/26/2014 6:55 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/26/2015	Precinct: 122
Date/Time CV Reported Mon, 05/26/2014 1:17 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 05/26/2014 1:19 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Sherwin Ogbewe	11368	942287	122 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Keith Miller	06267	952019	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Sherwin Ogbewe	Force: PO Sherwin Ogbewe used physical force against § 87(2)(b)	A . Unfounded

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the on-line website on May 26, 2014 (encl. B1-B5). On May 26, 2014, at approximately 6:55 a.m., § 87(2)(b) called 911 causing officers to respond to her home, located at § 87(2)(b) in Staten Island. The following allegations resulted:

- **Allegation A: Force- PO Sherwin Ogbewe used physical force against** § 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation A** be closed as **unfounded**.

This case was unsuitable for mediation. § 87(2)(g)

Results of Investigation

Injury Photos

§ 87(2)(b) sustained three bruises on her right upper arm and right forearm (encl. F1-F4).

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is an § 87(2)(b) white woman. She is § 87(2)(b), with grey hair and blue eyes.
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a written statement on May 26, 2014 (encl. B1-B5), a phone statement on June 2, 2014 (encl. D1), and a verified phone statement on June 4, 2014. § 87(2)(g)

On May 26, 2014, at approximately 6:30 a.m., at § 87(2)(b) in Staten Island, § 87(2)(b)'s husband, § 87(2)(b) slipped off his standing lift, an in-home contraption used to lift patients who cannot walk. § 87(2)(b)'s two caregivers, § 87(2)(b) and § 87(2)(b) could not get him out from the lift.

§ 87(2)(b) called 911 for officer assistance. PO Sherwin Ogbewe and PO Keith Miller, identified via investigation, responded to the scene. PO Ogbewe, who § 87(2)(b) referred to as PO "Ob," was a 6' tall, 175-pound, well-built, black man in his late 30s. § 87(2)(b) described PO2 as a 160-pound black man who was the same age as PO Ogbewe but shorter and thinner, and identified as PO Miller.

The officers told § 87(2)(b) that they could not help § 87(2)(b) and would call Emergency Medical Services (EMS). § 87(2)(b) asked PO Miller and PO Ogbewe for their name and shield numbers and they verbally provided it to her. When the Emergency Medical Technicians (EMTs) arrived, they asked everyone to move back. § 87(2)(b) claimed that she never interfered with the EMT workers but conceded that she was upset and was trying to instruct them on how to lift § 87(2)(b) out of his lift from five to six feet away. Two to three seconds after the EMTs told everyone to move, PO Ogbewe pushed § 87(2)(b)'s right upper arm and told her to get back. § 87(2)(b)'s upper body moved back as a result of the

push but her feet did not. § 87(2)(b) sustained a bruise to her right upper arm as a result of the push.

§ 87(2)(b) told PO Ogbewele not to touch her. PO Ogbewele pushed § 87(2)(b) again on her left shoulder. The second push was less forceful than the first push. § 87(2)(b) slapped PO Ogbewele in the face with her left hand. PO Ogbewele told § 87(2)(b) that she had hit a police officer and slapped her back in the right side of her face. The slap did not hurt and it did not injure § 87(2)(b).

PO Ogbewele grabbed § 87(2)(b)'s right forearm, just above her wrist, twisted her arm behind her back, and pushed her into a chair that was six feet away. § 87(2)(b) sustained two bruises on her lower right forearm as a result of the grab. PO Ogbewele never released his grip from § 87(2)(b).

When § 87(2)(b) was in the chair, PO Ogbewele pointed his finger in her face and told her that if she did anything else, she would be arrested.

Witness: § 87(2)(b) § 87(2)(b)

- § 87(2)(b) currently works as a caretaker for § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a phone statement to the CCRB on August 6, 2014 (encl. H1). Once PO Ogbewele and PO Miller arrived on scene, § 87(2)(b) tried to instruct the officers on what to do, but PO Ogbewele explained to § 87(2)(b) that they were not allowed to interfere and would call EMS to help § 87(2)(b). § 87(2)(b) became upset that the officers would not help and began screaming at PO Ogbewele.

Two EMTs arrived and came up with a plan to cut the straps of the lift in order to free § 87(2)(b) however § 87(2)(b) did not think this was a good idea so she went over to the EMTs and told them a different way to get § 87(2)(b) out of the lift. The EMTs instructed § 87(2)(b) three times to leave the room but § 87(2)(b) refused and began yelling at the EMTs. PO Ogbewele told § 87(2)(b) to leave and warned her that he would not ask her again.

§ 87(2)(b) turned to leave the room, so she did not see when § 87(2)(b) slapped PO Ogbewele in the face but was later informed by § 87(2)(b) that § 87(2)(b) had slapped PO Ogbewele. PO Ogbewele told § 87(2)(b) that she had just slapped a police officer, and grabbed both of § 87(2)(b)'s arms and escorted her into a chair. PO Ogbewele ordered § 87(2)(b) to stay seated in the chair and warned her that if she did not, he would handcuff her. § 87(2)(b) did not see PO Ogbewele slap § 87(2)(b) in the face. § 87(2)(b) proceeded to try and kick PO Ogbewele from her chair, but § 87(2)(b) stood in front of § 87(2)(b) in order to prevent her kicks from hitting PO Ogbewele.

Witness: § 87(2)(b)

- § 87(2)(b) currently works as a caretaker for § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a phone statement to the CCRB on July 15, 2014 (encl. G1). § 87(2)(g) became very upset that the officers would not help § 87(2)(b) themselves, and started "going after" PO Ogbewele. § 87(2)(b) was unable to clarify what she meant by "going after." PO Ogbewele told § 87(2)(b) that he could arrest her for the way she was acting.

The EMTs told § 87(2)(b) to stay back because she kept trying to get near them while they were trying to help § 87(2)(b). PO Ogbewe finally lightly pushed § 87(2)(b) into a chair by her upper arms. When asked if she ever saw § 87(2)(b) slap an officer or an officer slap § 87(2)(b), § 87(2)(b) stated that she did not. She did note that she went to the bathroom at one point during the incident.

Witness: EMT § 87(2)(b) § 87(2)(b)

- EMT § 87(2)(b) currently works as an Emergency Service Technician (EMT) for the New York Fire Department.

CCRB Statement

EMT § 87(2)(b) provided a phone statement to the CCRB on August 22, 2014 (encl. I1).

On May 26, 2014, at approximately 6:55 a.m., EMT § 87(2)(b) and EMT § 87(2)(b) responded to a medical situation inside § 87(2)(b) on Staten Island.

When he and EMT § 87(2)(b) began trying to get § 87(2)(b) out of the lift, § 87(2)(b) became aggressive and upset. § 87(2)(b) kept insisting that they remove § 87(2)(b) her way. § 87(2)(b)'s way was not correct, so EMT § 87(2)(b) and EMT § 87(2)(b) told § 87(2)(b) to let them do their jobs.

§ 87(2)(b) kept distracting them and was "in the way," so PO Ogbewe and PO Miller began telling § 87(2)(b) to let the EMTs do their job and to "back off."

While EMT § 87(2)(b) was in the midst of trying to free § 87(2)(b) from his lift, EMT § 87(2)(b) heard § 87(2)(b) and the officers arguing. EMT § 87(2)(b) turned around and saw PO Ogbewe holding his palm against § 87(2)(b)'s chest in an attempt to get § 87(2)(b) to stay back. § 87(2)(b) told PO Ogbewe to stop so PO Ogbewe took his palm off § 87(2)(b). § 87(2)(b) asked EMT § 87(2)(b) and EMT § 87(2)(b) if they had just witnessed what PO Ogbewe had done to her, and informed them that she was going to file a complaint against PO Ogbewe. EMT § 87(2)(b) asked § 87(2)(b) if she was hurt and she responded that she was not.

EMT § 87(2)(b) could not recall if § 87(2)(b) slapped PO Ogbewe. EMT § 87(2)(b) did not see PO Ogbewe slap § 87(2)(b) in the face.

Witness: EMT § 87(2)(b)

- EMT § 87(2)(b) currently works as an EMT for the New York Fire Department.

CCRB Statement

EMT § 87(2)(b) provided a statement to the CCRB on September 10, 2014 (encl. J1). § 87(2)(b)

While EMT § 87(2)(b) and his partner EMT § 87(2)(b) were attempting to get § 87(2)(b) out of his medical lift, § 87(2)(b) kept interfering. Both EMT § 87(2)(b) and the police officers told § 87(2)(b) to step back multiple times but § 87(2)(b) refused. EMT § 87(2)(b) could not recall what police action the officers took towards § 87(2)(b). § 87(2)(b) never saw an officer slap § 87(2)(b) or § 87(2)(b) slap an officer.

NYPD Statements:

Subject Officer: PO SHERWIN OGBEWELE

- PO Ogbewe is a § 87(2)(b)-old black man. He is § 87(2)(b), with brown hair and brown eyes.

- *PO Ogbewe worked from 11:15 p.m. on May 25, 2014, to 11:50 a.m. on May 26, 2014 assigned to Sectors A and B within the confines of the 122nd Precinct. PO Ogbewe worked with PO Keith Miller in uniform and assigned to marked vehicle #3902.*

Memo book

6:50 a.m., 10-56 at § 87(2)(b) 6:53 a.m., 9976; 10-93G; 10-97 RMA. EMT worker § 87(2)(b) and § 87(2)(b) FDNY was assisting AIDED in a lift. Was not letting EMS workers and officers help AIDED onto bed and kept interfering. § 87(2)(b) was asked numerous times to stand aside and let officers and EMS workers go to AIDED. § 87(2)(b) was escorted to the sofa by officers because she kept disregarding officer orders by not standing aside (encl. K1-K3).

CCRB Statement

PO Ogbewe provided a statement to the CCRB on August 21, 2014 (encl. L1-L3).

On May 26, 2014, at approximately 6:50 a.m., PO Ogbewe and PO Miller responded to an aided case. PO Miller and PO Ogbewe requested that EMS respond to the scene to help § 87(2)(b) § 87(2)(b) seemed to expect him and PO Miller to lift § 87(2)(b) out of the lift themselves and was not happy that the officers were calling EMS. PO Ogbewe told § 87(2)(b) that since § 87(2)(b) has pre-existing back and shoulder injuries, they did not want to cause further damage which is why they called EMS. § 87(2)(b) began calling the officers “idiots” and “stupid” because they would not get § 87(2)(b) out of the lift themselves.

Once the EMTs responded, § 87(2)(b) repeatedly told them to hurry up. The EMTs responded that they were going as fast as they could and asked § 87(2)(b) to step back. § 87(2)(b) refused to stand back and began to order the EMTs around. The EMTs told § 87(2)(b) to let them do their jobs. When the EMTs were trying to lift § 87(2)(b) out of the machine, § 87(2)(b) kept interfering with the lifter and causing § 87(2)(b) to move up and down and appeared to be causing § 87(2)(b) more pain. In response, PO Ogbewe told § 87(2)(b) to step back four to five times. § 87(2)(b) refused to stand back and told PO Ogbewe to stop telling her what to do. § 87(2)(b) and § 87(2)(b) told § 87(2)(b) to calm down.

PO Ogbewe asked § 87(2)(b) again to step back and § 87(2)(b) then attempted to slap PO Ogbewe in the face which he was able to block with his forearm. PO Ogbewe told § 87(2)(b) that he could arrest her and take her to a hospital. PO Ogbewe asked § 87(2)(b) to take a seat and escorted her to a sofa. § 87(2)(b) and § 87(2)(b) stood with § 87(2)(b) and told PO Ogbewe that they would watch her. § 87(2)(b) began trying to kick PO Ogbewe from the sofa so PO Ogbewe moved away from § 87(2)(b) PO Ogbewe never slapped § 87(2)(b) in the face.

Witness Officer: PO KEITH MILLER

- *PO Miller is a § 87(2)(b)-old black man. He is § 87(2)(b), with black hair and brown eyes.*
- *PO Miller worked from 11:15 p.m. on May 25, 2014, to 7:50 a.m. on May 26, 2014, assigned to Sectors A and B within the confines of the 122nd Precinct. PO Miller worked with PO Ogbewe, in uniform, and was assigned to marked police vehicle #3902.*

Memo book

6:50 a.m., 10-56S at § 87(2)(b) 6:51 a.m., final for 10-53 is § 87(2)(b) En route to the wellness charge. EMS worker § 87(2)(b) and § 87(2)(b) assisted on the lift job. 7:28 a.m., 10-55 by EMS personnel. Female names § 87(2)(b) (encl. M1-M4).

CCRB Statement

PO Miller provided a statement to the CCRB on August 21, 2014 (encl. N1-N3). § 87(2)(g)

When PO Ogbewe moved § 87(2)(b) to the side of the room to get her away from the EMTs and her husband, § 87(2)(b) attempted to slap PO Ogbewe in the face but PO Ogbewe blocked the slap with his forearm. PO Ogbewe then escorted § 87(2)(b) to a sofa and told her that he could arrest her for slapping him. PO Ogbewe never slapped § 87(2)(b) in the face.

Once § 87(2)(b) was on the sofa, she attempted to try and kick PO Ogbewe. § 87(2)(b) and § 87(2)(b) sat by § 87(2)(b) and told her to calm down and stay seated on the sofa.

Status of Civil Proceedings

- A Notice of Claim inquiry was filed on August 15, 2014, the results of the inquiry will be forwarded upon receipt.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A2).

Subject Officer CCRB History

- PO Ogbewe has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. A1).

Conclusion

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Identification of Subject Officer

- § 87(2)(b) named PO Ogbewe and accurately described him. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Force- PO Sherwin Ogbewe used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) was being uncooperative with the police officers and EMTs who responded to her home to help § 87(2)(b) § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) became upset that PO Ogbewe and PO Miller would not lift § 87(2)(b) out of his lift and began yelling at them. Once the EMTs did arrive, § 87(2)(b) and

§ 87(2)(b) stated that § 87(2)(b) did not like their ideas on how to get § 87(2)(b) out of his lift, so she began to order them around. The EMTs who responded, EMT § 87(2)(b) and EMT § 87(2)(b) § 87(2)(g) added that they asked § 87(2)(b) multiple times to step back, which she ignored. At this point, according to § 87(2)(b)'s account, PO Ogbewele asked her to step back and in response, she slapped him. § 87(2)(b) then stated that PO Ogbewele slapped her in the face back, twisted her arm and escorted her to a chair.

PO Ogbewele and PO Miller stated that § 87(2)(b) did try and slap PO Ogbewele but that he blocked the slap. At this point, PO Ogbewele admitted to telling § 87(2)(b) that he could arrest her for trying to slap him, and then led her by her upper arms to a nearby chair. PO Ogbewele denied slapping § 87(2)(b). PO Miller, § 87(2)(b) and § 87(2)(b) confirmed that PO Ogbewele threatened to arrest § 87(2)(b) after she attempted to slap him and corroborated the force PO Ogbewele admitted to using against § 87(2)(b). They all also denied that PO Ogbewele slapped § 87(2)(b) § 87(2)(g).

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g)
it is recommended that **Allegation A** be closed as **unfounded**.

Team: ____2____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date